

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Kathleen M. Tafoya

Civil Action No: 17-cv-02629-KMT
Courtroom Deputy: Kristina Senamonty

Date: May 8, 2019
Court Reporter: Mary George

Parties:

DARYLL PROPP, and
CAROL PROPP,

Plaintiffs,

v.

AMERICAN FAMILY MUTUAL INSURANCE
COMPANY,

Defendant.

Counsel:

Murray Wilkening

Katie Johnson
Sandy Eloranto

**COURTROOM MINUTES/MINUTE ORDER
JURY TRIAL – DAY 3**

8:49 a.m. Court in session.

Court calls case. Appearances of counsel.

Court addresses preliminary matters with counsel.

Defendant moves for directed verdict on their affirmative defense of failure to comply with contractual duties under loss under Rule 50.

ORDERED: Neither party is entitled to judgment as matter of law and therefore, the motion is Denied at this time.

9:40 a.m. Court in recess.

9:59 a.m. Court in session.

Final jury instruction conference.

Discussion as to the line of questioning of witness Paul Logan.

10:19 a.m. Court in recess.

10:28 a.m. Jury present.

10:30 a.m. Court in session.

Plaintiff rebuttal witness Paul Logan present, sworn in.

10:31 a.m. Direct examination of witness Paul Logan.
10:44 a.m. Cross examination of witness Paul Logan.
11:12 a.m. Redirect examination of witness Paul Logan.

11:16 a.m. witness excused.

Exhibit 29A admitted.

Plaintiff calls witness Carol Propp as rebuttal, sworn in.

11:17 a.m. Bench conference regarding the rebuttal testimony of Carol Propp.

11:23 a.m. Plaintiff withdraws calling Carol Propp as a rebuttal witness, witness excused.
Plaintiff rests.

11:25 a.m. Jury excused for break.

Defendant renews Rule 50 motions.

Defendant motions under Rule 50 a partial directed verdict motion for the claim for breach of contract related to soft metals under the policy.

Court takes motion under advisement. Court will make ruling and go over the final jury instruction before jury enters.

11:38 a.m. Court in recess.

11:48 a.m. Court in session.

ORDERED: Court finds this is not an issue that should be decided as a matter of law, the Motion regarding soft metals is Denied.

11:53 a.m. Jury present.

11:54 a.m. Bench conference to confirm exhibits that were admitted.

11:56 a.m. Closing argument by Plaintiff.

12:12 p.m. Bench Conference regarding Plaintiff closing argument.

12:13 p.m. Continue Plaintiff closing argument.

12:30 p.m. Closing argument by Defendant.

1:07 p.m. Plaintiff rebuttal closing argument.

1:14 p.m. Reading of instructions to Jury.

1:52 p.m. Bench conference with counsel to make sure no objections.

1:52 p.m. Courts remarks to jurors.

1:54 p.m. Bailiff sworn.

1:55 p.m. Jury begin deliberations

1:58 p.m. Court in recess.

3:23 p.m. Court in session.

Court informs counsel that a note has been received from the jury indicating that unanimous verdicts have been reached.

3:26 p.m. Jury present.

Verdict placed on record.

Jury is given its closing trial instructions and discharged with the thanks of the court.

3:39 p.m. Jury recalled to the courtroom.

Court sends jurors back to deliberate on question # two of the verdict form.

3:41 p.m. Bench conference regarding the additional instruction to jurors to complete question # two of verdict form.

Jury released back to deliberations.

3:42 p.m. Court in recess.

3:51 p.m. Court in session.

3:53 p.m. Jury present.

Jury reached a verdict. Verdict placed on the record.

Juror makes statement on the record to the court and counsel.

Jury is given its closing trial instructions and discharged with the thanks of the court.

3:59 p.m. RECESS

Total In-Court Time: 4:56